

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 06-cv-01142-WDM-MJW

KARYN S. PALGUT,

Plaintiff,

v.

CITY OF COLORADO SPRINGS,

Defendant.

VERDICT FORM

Question 1: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs discriminated against Plaintiff Karyn Palgut on the basis of her sex in violation of Title VII of the Civil Rights Act of 1964? (Instr. No. 2)

Answer Yes or No: NO

Question 2: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs retaliated against Plaintiff Karyn Palgut for making a complaint of sex discrimination in violation of Title VII of the Civil Rights Act of 1964? (Instr. No. 3)

Answer Yes or No: NO

Question 3: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs discriminated against Plaintiff Karyn Palgut on the basis of her age in violation of the Age Discrimination in Employment Act? (Instr. No. 4)

Answer Yes or No: NO

If your answer to Question 3 is "yes," then proceed to Question 4. If your answer to Question 3 is "no," then proceed directly to Question 5.

~~Question 4: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs' violation of the Age Discrimination in Employment Act with regard to Plaintiff Karyn Palgut was willful?~~

~~Answer Yes or No: YES~~

Question 5: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs discriminated against Plaintiff Karyn Palgut in violation of her civil rights? (Instr. No. 5)

Answer Yes or No: NO

Question 6: Do you find by a preponderance of the evidence that Defendant City of Colorado Springs deprived Plaintiff Karyn Palgut of her right to Due Process in violation of her civil rights? (Instr. No. 6)

Answer Yes or No: NO

ONLY ANSWER QUESTION 7 IF YOU ANSWERED "YES" TO QUESTION 3, 5 or 6.

Question 7: What amount of back pay damages do you find that Plaintiff Karyn Palgut has proven by a preponderance of the evidence that she is entitled to arising out of Defendant City of Colorado Springs' discrimination against her on the basis of age and/or violation of her civil rights?

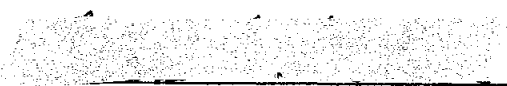
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ONLY ANSWER QUESTION 8 IF YOU ANSWERED "YES" TO QUESTION 1, 2, 3, 5 and/or 6.

Question 8: What amount of compensatory damages do you find that Plaintiff Karyn Palgut has proven by a preponderance of the evidence that she is entitled to arising out of Defendant City of Colorado Springs' discrimination against her on the basis of sex in violation of Title VII, retaliation against her in violation of Title VII, violation of the Equal Protection Clause, and/or deprivation of her Due Process rights?

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Dated: 21 APR 2010


Foreperson